



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG 26 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11210

EXPIRATION DATE: May 31, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Owl Scientific, Inc., Woburn, Massachusetts
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain small quantities of Division 6.1 and Division 5.1 solid materials, which, when packaged in accordance with this exemption, may be shipped in accordance with the provisions of Section 173.4. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.4(a)(2)(ii).
5. BASIS. This exemption is based on Owl Scientific, Inc.'s application dated January 18, 1994, submitted in accordance with 49 CFR 107.103 and the public process thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Acrylamide	Division 6.1	UN 2074	III
Poisonous liquids, n.o.s./bis-Acrylamide	Division 6.1	UN 2810	III
Ammonium persulfate	Division 5.1	UN 1444	III

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging is a combination packaging, as described in Owl Scientific's application dated January 18, 1994, ~~consisting of an inner plastic film bag, separated~~ from other inner packagings with corrugated fiberboard and cushioned within an outer corrugated fiberboard box. The inner plastic film bag is constructed of a triple-layer, laminated composite film with an outer layer of polyester, a center layer of low density polyethylene, and an inner layer of Surlyn. The minimum thickness of the plastic film bag must be no less than 0.08 mm (0.003 inch). All void space between the inner packagings and outer packaging must be filled with an absorbent/cushioning material such as vermiculite. Except for the minimum thickness of the inner plastic packagings, the packagings must comply with the provisions of Section 173.4.

b. TESTING - The completed package must be tested and be capable of withstanding the tests specified in §173.4(a)(6).

c. MARKING - The outside of the package may not be marked with the statement specified in §173.4(a)(9), but must be marked "DOT-E 11210" in its place.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo aircraft only.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 26 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA, FHWA.